

HOUSE BILL 36

By Davis

AN ACT to amend Tennessee Code Annotated, Title 40
and Title 41, relative to inmates.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 40-35-501, is amended by deleting subdivision (x)(1) and substituting:

(x)

(1) Notwithstanding this part or chapter 28, part 1 of this title to the contrary, the commissioner of correction may certify as eligible for parole an inmate who:

(A) Is at least fifty-five (55) years of age;

(B) Has served a minimum of ten (10) years in custody;

(C) Is not serving a sentence for:

(i) A violent sexual offense, as defined in § 40-39-202; or

(ii) More than one (1) conviction for first degree murder, pursuant to § 39-13-202, or facilitation of first degree murder; and

(D) Is not serving a sentence of imprisonment for life without possibility of parole.

SECTION 2. Tennessee Code Annotated, Section 41-21-227, is amended by deleting subdivision (i)(2)(A) and substituting:

(2)

(A) Subdivision (i)(1) applies only to inmates who, due to the inmate's chronically debilitated or incapacitated medical condition:

(i) Have a medical prognosis of mortality within one (1) year or less; or

(ii) Are no longer able to perform at least one (1) of the activities of daily living in a prison environment.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.